

An Act

ENROLLED SENATE
BILL NO. 1589

By: Gollihare of the Senate

and

Hilbert and Fetgatter of
the House

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 941, as amended by Section 226, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 941), which relates to gambling; defining terms; modifying scope of certain offense; updating statutory language; updating statutory reference; and providing an effective date.

SUBJECT: Gambling

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 941, as amended by Section 226, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 941), is amended to read as follows:

Section 941. A. For purposes of this section:

1. "Online casino games" means any gambling game that allows a person to access the Internet, World Wide Web, or any part thereof by way of a computer, computer system, computer network, computer software, computer terminal, or similar device including, but not limited to, a cellular or mobile telephone, a smart or electronic watch, or a tablet that, upon risking any representative of value, simulates any gambling game described in this section or any other form of gambling including, but not limited to, a slot machine as defined in Section 964 of this title, a lottery as defined in subsection A of Section 1051 of this title, a bingo game or U-PIK-EM bingo game as defined in paragraphs 1 and 22 of Section 402 of Title 3A of the Oklahoma Statutes, or any prohibited game as described in

subsection H of Section 262 of Title 3A of the Oklahoma Statutes;
and

2. "Representative of value" includes any and all currency used as part of a dual-currency system of payment that allows a person to exchange such currency for any prize, award, cash, or cash equivalent, or any chance to win any prize, award, cash, or cash equivalent.

B. Except as provided in the Oklahoma Charity Games Act or as otherwise authorized to be conducted on Indian lands in compliance with the Indian Gaming Regulatory Act, 25 U.S.C., Section 2701 et seq., every person who opens, or causes to be opened, or who conducts, whether for hire or not, or carries on either poker, roulette, craps, or any banking or percentage, or any gambling game played with dice, cards, or any device including, but not limited to, online casino games, for money, checks, credits, or any representatives of value, or who either as owner or employee, geolocation provider, gaming supplier, platform provider, promoter, or media affiliate, whether for hire or not, deals or provides support for those engaged in any such game, shall be guilty of a Class C2 felony offense, and upon conviction thereof, shall be punished by a fine of not less than Five Hundred Dollars (\$500.00), nor more than Two Thousand Dollars (\$2,000.00), and by imprisonment as provided for in subsections B through F of Section 20M of this title.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 2nd day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____